Raman vs State on 25 July, 2024

Author: Subramonium Prasad

Bench: Subramonium Prasad

$~2
* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3553/2021
RAMAN
Th
ve
STATE
Th

CORAM:
HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD
ORDER

% 25.07.2024 BAIL APPLN. 3553/2021 & CRL.M.A. 5862/2024

1. Petitioner has approached this Court seeking bail in the event of arrest in FIR No.202/2021, dated 26.03.2021, registered at Police Station Mehrauli, for offences under Sections 195A/506/34 IPC. The FIR arises out of a matrimonial dispute.

2. During the pendency of the present Petition, the parties have entered into a settlement agreement dated 02.06.2023, arrived at before the Delhi High Court Mediation and Conciliation Centre and the same reads as under:

" SETTLEMENT AGREEMENT This Settlement Agreement is entered into on 02.06.2023.

BETWEEN This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48 RAMAN S/o SH. KISHORE KUMAR R/o 10578/8, GALI NO. 2, MATIYA KHAN, PAHARGANJ, DELHI (HEREINAFTER REFERRED TO AS THE FIRST PARTY) AND MEENU KADWA D/O RAJESH R/O 1/906 G.T KARNAL ROAD MANSAROVER PARK SHAHDARA DELHI 110032 (HEREINAFTER REFERRED TO AS THE SECOND PARTY) WHEREAS the First Party and Second Party got married on 06.05.2012 at Plot No. 1/906 G.T Road, Mansarovar Park, Sahadara Delhi

according to Hindu Rites and Ceremonies. There is no child born from the wedlock.

AND WHEREAS disputes and differences arose between the First Party and Second Party and they have been living separately since 15.09.2012. AND WHEREAS the matter bearing Bail Appln No. 3553/2021 was referred to Samadhan (Delhi High Court Mediation and Conciliation Centre) vide order dated 06.12.2022 passed by Hon'ble Mr. Justice Dinesh Kumar Sharma.

AND WHEREAS following cases/FIR are pending between the parties:

i. DV Act complaint pending before Jaipur Metro Court filed by Second Party.

ii. FIR No. 178/2013 Mahila Thana, West, Jaipur Commissionerate filed by Second Party.

iii. FIR No. 296/2013 Police Station, Murlipura, Jaipur West filed by Second Party.

iv. FIR No. 202/21 U/s 195-a/506/34 IPC, P.S:

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48 Mehraruli registered by Second Party.

v. Complaint filed by the First Party before ACJ & MM 4, Jaipur Metro II whereby court ordered complaint to be registered as FIR with Sadar Thana, Jaipur.

vi. Any other case pending between the parties prior to the date of Settlement.

And whereas the parties agreed that Ms. Sujata Kashyap, Advocate would act as Mediator in the matter of Mediation proceedings.

And WHEREAS various mediation sessions were fixed/held with the parties and their respective counsels and with the assistance of the Mediator, the parties voluntarily arrived at an amicable solution resolving the above mentioned disputes and differences.

And whereas the parties hereto confirm and declare that they have voluntarily and of their own free will without any force or coercion etc. arrived at this Settlement Agreement in the presence of the Mediator. The following settlement has been arrived at between the parties hereto:

a. The First Party and Second Party have agreed to dissolve their marriage by a Decree of Divorce by Mutual Consent in accordance with the provisions of the Hindu

Marriage Act, 1955 (HMA).

b. The parties have agreed to file the joint petition under 13-B(1) of Hindu Marriage Act, 1955 for dissolution of marriage by way of mutual consent, which shall be filed within 30 days from the date of signing of the present Settlement Agreement.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48 c. That it has been agreed between the Parties that an full and final amount of Rs. 4,50,000/- (Rupees Four Lakh Fifty Thousand only) shall be paid by the First Party to the Second Party towards all her claims of maintenance future, past and present and stridhan out of which Rs. 1,00,000/- has already been received by the Second Party on 04.01.2018.

d. That the balance amount of Rs. 3,50,000/- shall be deposited before the Family/Divorce Court in two installments. The First installment of Rs. 1,75,000/- on the date of recording of the First Motion and Second installment of Rs. 1,75,000/- on the date of recording of the Second Motion however the entire amount shall be released to the Second Party only on the recording of the Second Motion before the Hon'ble Family Court.

e. The parties agree that all pending cases/complaints/Fir's shall be withdrawn/quashed by moving appropriate proceedings for the same between the recording of the First and Second Motion and ensure that the same are quashed/withdrawn.

f. The parties agree and assure each other that they shall not In future file any complaint/case/proeeeding against each other before any court/forum/authority In respect of their marital discord. Further the parties agree that they shall withdraw any complaint/case/proceeding have been filed against each other or their family members or friends In the absence whereof, the same shall be deemed to have been settled in terms of the present Settlement Agreement.

g. Both the parties agree and undertake not to Interfere In the life of each , other In any manner and also undertake not to make any allegations, defamatory or This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48 derogatory statements against each other and their respective family members personally or on any public forum or through social media i.e. whatsapp, facebook, twitter, Instagram etc. or in any other manner. h. The

Settlement Agreement has been explained to the parties in vernacular by the Ld. Mediator and their respective counsels.

i. The Parties agreed that they shall abide by the terms and conditions set out In the present Settlement Agreement and shall not dispute the same hereinafter In future. The Parties further agree that the statements made by them herein In this Settlement Agreement shall be taken as their respective undertakings to the Hon'ble Court and the defaulting party shall be held liable for contempt of court under the Contempt of Courts Act, 1971.

j. The parties agree that they have entered in to this settlement agreement out of their free will and volition without any fear, force, fraud or undue influence.

k. The parties are left with no further claim against each other.

1. By signing this Agreement all the parties hereto state that they have no further claims or demands against each other relating to the present matrimonial dispute.

That the parties undertake that they are bound by this Settlement Agreement and further undertake to abide by the terms and conditions set out in the agreement and not to dispute the same hereinafter in future in relation to the present matrimonial dispute."

3. In view of the fact that the parties have entered into a settlement, this Court is inclined to grant bail to the Petitioner in the event of arrest on This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48 Petitioner furnishing a Personal Bond in the sum of Rs.10,000/- with two sureties of the like amount to the satisfaction of the Investigating Officer/Duty Magistrate.

4. The Petition is disposed of along with the pending applications, if any.

SUBRAMONIUM PRASAD, J JULY 25, 2024 Rahul This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:03:48